

Amendment No. 1 to SB2659

Bailey
Signature of Sponsor

AMEND Senate Bill No. 2659*

House Bill No. 2408

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 65, Chapter 4, Part 4, is amended by adding the following as a new section:

(a)

(1) A person or entity that makes telephone solicitations to residential subscribers in this state shall maintain a record of the number of telephone solicitations made to residential subscribers in this state each month. The records must be provided to the commission, the attorney general and reporter, or both, upon request.

(2) A person or entity that fails to comply with subdivision (a)(1) may be subject to the penalties provided in this part.

(b) Notwithstanding this part or another law to the contrary, a person or entity shall not make more than ten thousand (10,000) telephone solicitations to residential subscribers in this state per month.

(c) A violation of subsection (b) is a violation of the Tennessee Consumer Protection Act of 1977, compiled in title 47, chapter 18, part 1. A violation of subsection (b) constitutes an unfair or deceptive act or practice affecting trade or commerce and is subject to the penalties and remedies as provided in the Tennessee Consumer Protection Act of 1977, in addition to the penalties provided in this part. However, notwithstanding § 47-18-109, a person does not have a private cause of action for a violation of subsection (b).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to conduct occurring on or after that date.